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On: 21 March 2014, At: 23:31

Publisher: Routledge

Informa Ltd Registered in England and Wales Registered Number: 1072954

Registered office: Mortimer House, 37-41 Mortimer Street, London W1T 3JH, UK



Post-Soviet Affairs

Publication details, including instructions for authors and subscription information:

<http://www.tandfonline.com/loi/rpsa20>

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Published online: 16 May 2013.

To cite this article: Ivan Katchanovski (2008) The Orange Evolution? The "Orange Revolution" and Political Changes in Ukraine, *Post-Soviet Affairs*, 24:4, 351-382

To link to this article: <http://dx.doi.org/10.2747/1060-586X.24.4.351>

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The Orange Evolution?

The “Orange Revolution” and Political Changes in Ukraine

Ivan Katchanovski¹

Abstract: Have there been changes in political institutions, parties, leaders, and regional political orientations in Ukraine after the “Orange Revolution”? If so, are the changes revolutionary or evolutionary? Most previous studies refer to the 2004 presidential elections and mass protest actions as a revolution. To test this claim, this article analyzes political changes in Ukraine. Survey data are used to compare changes in pro-Russian and pro-Western orientation, support for major parties in the 2002, 2006, and 2007 parliamentary elections, and support for leading presidential candidates since the 2004 presidential elections. The implications of these changes for development of democracy in Ukraine are also considered.

The “Orange Revolution” was a key event in recent Ukrainian politics. Viktor Yushchenko won the repeat second round of the 2004 presidential elections with the backing of hundreds of thousands of demonstrators and with the support of the Yulia Tymoshenko bloc (BYuT), the Socialist Party of Ukraine (SPU), and several smaller parties. The Orange allies formed a coalition government after Yushchenko’s victory (Åslund and McFaul, 2006; Bredies, Umland, and Yakushik, 2007; Copsey, 2005; Katchanovski, 2006a; Wilson, 2005a). However, as a result of the 2006 parliamentary elections as well as political system reform, and disagreement within

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the Orange camp, opponents of the "Orange Revolution" regained control of the parliament and the cabinet of ministers.

In the 2006 parliamentary elections, the Party of Regions received the largest number of votes, while the Yushchenko bloc "Our Ukraine" came third, trailing behind the Yulia Tymoshenko bloc. Political reform, which came into effect after the 2006 elections, had been enacted by the parliament (Rada) before the repeat second round of the 2004 presidential elections as a result of a compromise between Orange and anti-Orange leaders. This reform transformed Ukraine from a presidential-parliamentary into a parliamentary-presidential republic. After unsuccessful attempts to revive the Orange coalition in 2006, the Socialist Party switched sides, joining a coalition with the Party of Regions and the Communist Party. In August 2006, Viktor Yanukovich again became prime minister of Ukraine, this time wielding much more formal power than he had before the "Orange Revolution" (Katchanovski, 2006b; *Natsionalnyi*, 2006).

In the spring of 2007, Viktor Yushchenko issued several presidential decrees, dissolving the parliament despite initial opposition from the anti-Orange majority in the Rada and from the Yanukovich government, both of which deemed the move anti-constitutional. The Yulia Tymoshenko bloc and the bloc "Our Ukraine" won a narrow majority of parliamentary seats in snap elections held in September 2007, and by the end of 2007, these two electoral blocs of Orange parties formed a new parliamentary coalition and the government.

Were the changes in political institutions, leadership, parties, and political values that resulted from the "Orange Revolution" revolutionary or evolutionary, or did any significant changes at all occur? This question is important not only in terms of theory but also for other reasons. It has significant foreign policy implications for Ukraine and neighboring post-communist countries, in particular for Russia and Poland, and also for major Western countries such as the United States, the United Kingdom, France, and Germany. Revolutionary changes would imply a shift of Ukrainian leadership, ruling parties, and population away from a pro-Russian orientation and towards a pro-Western foreign policy orientation, in particular as regards the North Atlantic Treaty Organization (NATO).

The issue of Ukraine's NATO membership became a divisive issue not only for the United States and Russia but also for NATO members. During his visit to Ukraine before the NATO summit in Bucharest and at the summit held in April 2008, George Bush actively supported Ukraine's membership in this alliance. He cited the democratic, pro-Western "Orange Revolution" in Ukraine as a justification for this step (Peter Baker in *The Washington Post*, April 2, 2008). In contrast, Vladimir Putin actively opposed such a move on the grounds that it would present an unacceptable threat to Russia's security and potentially would lead to a breakup of Ukraine along regional lines (*Dzerkalo tyzhnia*, April 19, 2008). The US position was backed by such NATO members as Canada, the United Kingdom, Poland, and the Baltic states. In contrast, other NATO powers, including Germany and France, opposed extending a membership action

plan to Ukraine at the Bucharest summit, citing the Russian opposition and internal divisions in Ukraine on the issue of the NATO membership. A compromise decision, which denied a membership action plan to Ukraine at the 2008 summit but affirmed a real possibility of accepting Ukraine into the North Atlantic Treaty Organization in the future, suggests that the matter of Ukraine's NATO membership will remain an important foreign policy issue. John McCain, Barack Obama, and Hillary Clinton, the leading presidential candidates, co-sponsored a US Senate resolution expressing US support for Ukraine and Georgia's membership in NATO that was passed unanimously in April 2008.

My hypothesis is that the "Orange Revolution" produced evolutionary changes in political institutions, leadership, parties, and values in Ukraine. In contrast to revolution, which involves rapid, wide-ranging, and fundamental change, the term "evolution" refers to a gradual, non-comprehensive, incremental process of political change (Motyl, 1999, pp. 30–32). Evolutionary change occupies a place between revolutionary transformation and political stagnation. Evolution is exemplified by political reform.² In contrast to values, which reflect political culture and generally change slowly, political attitudes are much more fluid (Lipset, 1996).

Although scholars differ in their definitions of revolution, many theories of revolution emphasize profound and comprehensive political and social changes that are advanced by revolutionary leaders and the revolutionary masses who overthrow an old regime. Such radical and rapid change is often regarded as a key element in defining revolution and contrasting it with a reform movement or a popular rebellion (see, for example, Goldstone, 2003, 2004; Huntington, 1968; Motyl, 1999; Skocpol, 1979, 1995). For instance, Skocpol (1995, p. 1072) defines revolutions as "rapid, basic transformations of a nation's governmental institutions and ideals—and perhaps its social structures as well." Another definition of revolution emphasizes "rapid, comprehensive, and fundamental change" (Motyl, 1999, p. 26). Classical or "great revolutions," such as the French Revolution or the Russian Revolution, involve "rapid, fundamental, and violent domestic change in the dominant values and myths of a society, in

²Definitions are important, not only for theoretical reasons but also for their practical implications. The uncritical adoption of definitions of revolution coined by politicians and journalists as well as other politically laden terms such as terrorism, genocide, empire, and democracy brings value judgment into academic study (Weber, 1949). For example, use of the political definition of Europe as a continent with no clear eastern borders and of the term "Russia" to identify the whole of the Soviet Union, with the exception of the Baltic states, implies that Ukraine may not be part of Europe and that Ukrainians may not be European (Pagden, 2002). This is one of the reasons why Ukraine would not be considered for membership in the European Union, even if it met all the conditions of such membership. In contrast, for political reasons Turkey is often identified as part of Europe and is in the midst of negotiation for membership in the EU. The use of the term "Orange Revolution" implies that developments in Ukraine will be evaluated through the lens of the question of whether the "revolution" succeeded or failed (Tudoroiu, 2007).

its political institutions, social structure, leadership, and governmental activity and policies" (Huntington, 1968, p. 264).

Political revolutions transform only government or state institutions and political values. In contrast, social revolutions are more comprehensive than political revolutions and involve rapid and profound changes in the economy and other areas (Goldstone, 2004; Skocpol, 1979, 1995). For example, Goldstone (2004, p. 1039) emphasizes "a fundamental change in the institutions of government, following the collapse or overthrow of the prior regime."³ In addition, political revolutions differ from rebellions, coups, and wars of independence. The idea that political revolutions differ from rebellions, coups, and wars of independence and the notion that revolution involves radical and rapid change are both crucial for this study.

The fundamental and comprehensive transformation associated with revolutions does not necessarily include a complete break with the old regime. For example, the French Revolution involved the overthrow of the monarchy and the elimination of many other feudal political institutions, but it also had a certain political continuity with the *ancien régime*—for example, in the form of centralization of political power (de Tocqueville, 1998). Although the Bolsheviks envisioned the Russian Revolution as a complete replacement of the ruling class, they had to employ high-ranking officials from the old regime as top advisers in the government, army, and security forces for a certain period of time. However, the absolute majority of revolutionary leaders who came to power in the fall of 1917 did not occupy influential positions under the old regime in the Russian Empire.

There are much broader definitions of revolution—for example, as "a forcible transfer of power over a state in the course of which at least two distinct blocs of contenders make incompatible claims to control the state, and some significant portion of the population subject to the state's jurisdiction acquiesces in the claims of each bloc" (Tilly, 1993, p. 8). However, such a definition views many forcible changes of government, such as successful rebellions, civil wars, and wars for independence, as revolutions. For example, under this definition, the collapse of communism in the Soviet Union and Ukraine's independence in 1991 become revolutions. According to this definition, many Ukrainian Cossack rebellions from the 1500s through the 1700s are defined as revolutionary in nature though not in outcome (Tilly, 1993, p. 203 and p. 235). However, most studies of Ukrainian politics and history do not regard Ukraine's independence in 1991 as a revolution or the Cossack uprisings as attempted revolutions.

There is no scholarly consensus on whether the collapse of communism in East European and Central European countries represented revolution. For instance, only political change in Czechoslovakia, East Germany, Yugoslavia, and the Soviet Union at the end of the 1980s and the beginning of the 1990s completely fit even the broad definition of revolu-

³However, Goldstone (2008) accepts a broad definition of revolution and argues that the "color revolutions" in Ukraine, Georgia, and Kyrgyzstan are actual revolutions.

tion (Tilly, 1993, p. 235). In contrast, the fall of communism in Albania, Bulgaria, Hungary, Poland, Romania, and many former Soviet republics such as the Central Asian states is generally not regarded as revolution because in these countries either the situations or the outcomes were not fully revolutionary (Bremmer and Taras, 1997; Siani-Davies, 1996; Tilly, 1993).

PREVIOUS STUDIES

A popular view, prevalent in the Western and the Ukrainian mass media, characterizes the 2004 presidential elections, mass actions of protest, and related political events and changes as a democratic, pro-Western revolution named the "Orange Revolution" after the orange color used by Viktor Yushchenko and his supporters.⁴ Academic researchers have only begun to analyze the nature of the "Orange Revolution" and associated political change in Ukraine. Some of these studies express doubts about whether a revolution did take place in Ukraine. They note that, apart from mass non-violent actions of popular protest, the "Orange Revolution" lacked comprehensiveness and depth of change in a number of areas. However, the "Orange Revolution" is described as a revolution in most of these studies (Åslund and McFaul, 2006; Bunce and Wolchik, 2006; D'Anieri, 2005, 2006; Goldstone, 2008; Hale, 2006; Motyl, 2008; Wilson, 2005a).

The "Orange Revolution" is viewed as the continuation of a wave of democratic revolutions, including the "Rose Revolution" in Georgia and the "Tulip Revolution" in Kyrgyzstan. The "Rose Revolution" and the "Tulip Revolution" were triggered by the falsification of the results of parliamentary elections in Georgia in 2003 and in Kyrgyzstan in 2005. As a result of mass protests and new elections, leaders of these post-Soviet countries were replaced (D'Anieri, 2006; Bunce and Wolchik, 2006). How-

⁴The color orange, which was adopted by Viktor Yushchenko during the presidential campaign and by his supporters during mass actions of protest against the falsification of the election results, had been an ideologically neutral color in Ukraine prior to these events. Orange had no association with colors employed by leading political parties or politically controversial colors in Ukrainian history. For example, the moderate nationalist Rukh, both factions of which joined the Yushchenko bloc "Our Ukraine" during the 2002 and 2007 parliamentary elections, adopted a yellow and blue flag, which had been used by Ukrainian organizations in Galicia since the middle of the 19th century (when it was a province of the Austro-Hungarian Empire) and by the short-lived Ukrainian People's Republic after the Bolshevik Revolution. Yellow and blue became the colors of the official flag of independent Ukraine. Several radical nationalist organizations, including the Congress of Ukrainian Nationalists, which was a member of the Yushchenko bloc, adopted the colors black and red. These colors had been used by the western Ukraine-based radical Organization of Ukrainian Nationalists, which had waged a partisan war against the Soviet authorities and their Ukrainian supporters after World War II. The Socialist Party, like the Communist Party of Ukraine, continued to use the color red, which had been the official color of the Soviet Communist Party and the Soviet Union, but which was also used by social democratic parties.

ever, the consolidation of power by president Mikhail Saakashvili and his party, the use of administrative resources during the 2008 presidential elections, the refusal of leading opposition candidates to recognize the results of these elections, the violent dispersal of an opposition rally in Tbilisi in the fall of 2007, indiscriminate use of military force to impose Georgian rule in the *de facto* independent separatist region of South Ossetia in August 2008, and politically-motivated criminal charges brought against a number of opposition leaders, some of whom were allies of Saakashvili during the "Rose Revolution," show that Georgia has not become a fully democratic country, and that President Saakashvili has increasingly resorted to authoritarian methods. Developments in Kyrgyzstan after the "Tulip Revolution" show a similarly significant continuity with the old regime. President Kurmanbek Bakiyev consolidated power into his own hands (Tudoroiu, 2007). He violently dispersed mass opposition protests in the spring of 2007. A number of opposition parties, some of which were headed by former allies of Bakiyev, refused to recognize the results of the December 2007 parliamentary elections, which produced an overwhelming victory for the pro-presidential party, because it employed administrative resources and fraud. Attempts by some opposition forces to implement similar "color revolutions" in other post-Soviet states, in particular, during presidential and parliamentary elections in Armenia, Azerbaijan, Belarus, Moldova, and Russia, have failed.⁵

Previous studies almost universally have regarded the "Orange Revolution" in Ukraine as a democratic breakthrough because it replaced a semi-democratic or semi-authoritarian government with a democratic government that instituted free and fair elections (Bunce and Wolchik, 2006; Hale, 2006; Stepan, 2005). Government-led manipulation of the voting process, falsification of voting results, and use of administrative resources and mass media to influence voting choices characterized the first two rounds of the presidential elections in 2004. Massive street protests and a ruling by the Supreme Court invalidated official results that declared Viktor Yanukovych the victor. The repeat second round of these elections and the 2006 parliamentary elections were regarded as democratic and free and fair, with some relatively minor exceptions (Hale, 2006; Myagkov, Ordeshook, and Shakin, 2005; *Natsionalnyi*, 2006; Wilson, 2005a). Even a study that highlights the evolutionary nature of Ukraine's development after the "Orange Revolution" views Italian politics and economy as the most likely direction of this development (Motyl, 2008).

The "Orange Revolution" is sometimes characterized as an anti-oligarchic revolution. For example, Åslund (2005) argues that the "Orange Revolution" challenged the oligarchic regime instituted during Kuchma's presidency. It was a liberal bourgeois revolution directed against oligarchs.

⁵The pro-Western orientation of the Saakashvili regime in Georgia led many Western journalists, politicians, and academics to label it as democratic. In contrast, many Western journalists, politicians, and scholars defined a similar regime in Putin's Russia as non-democratic.

After the revolution, Ukrainian oligarchs would transform themselves into Western-style businessmen. Similarly, the semi-oligarchic Party of Regions was expected to transform itself into a democratic, pro-Western party, akin to the Republican Party in the United States. (Åslund, 2005).

DATA AND METHODOLOGY

This article focuses on the analysis of political change—in particular, changes in political institutions, leadership, parties, and attitudes in Ukraine—after the “Orange Revolution.” This study uses election data; opinion poll data; a daily review of major Ukrainian and Western news sources on Ukrainian politics, such as *Ukrainska pravda*⁶ and the BBC; and field research in Ukraine before, during, and after the 2004 presidential elections, during the political crisis in spring 2007, and during the 2007 snap parliamentary elections to determine whether these changes were revolutionary or evolutionary, or whether anything changed at all. The article analyzes four key topics: (1) political institutions before and after the “Orange Revolution”; (2) the orientation, background, and behavior of the main leaders of the “Orange Revolution” and their opponents; (3) changes in national support for major political parties since the 2002 parliamentary elections; and (4) changes in national support for main presidential candidates since the 2004 presidential elections.

This article uses national surveys conducted by the Kyiv International Institute of Sociology (KIIS) and the Razumkov Center (the Oleksandr Razumkov Center for Economic and Political Research) to compare changes in political orientation in Ukraine. Polls conducted or commissioned by these two centers have a relatively good track record for the previous elections.⁷ For example, KIIS and the Razumkov Center provided the most reliable exit poll data during the 2004 presidential elections.⁸

⁶*Ukrainska pravda* is an online newspaper that generally takes a pro-Orange and an anti-Russian stance.

⁷Many polls have been produced by other polling organizations in Ukraine. These polls are not used in this study because those organizations have been known to manipulate results deliberately for reasons of political preference or in exchange for money. For example, this applies to polls that were reported during election campaigns by unknown and probably sham organizations, such as the Kyiv Sociological Academy, the Ukrainian Sociology Online Group, and the All-Ukrainian Center for Political Studies. Such virtual polls and virtual organizations, created by political technologists at the request of their political sponsors, are akin to the virtual political parties that appear during election campaigns in Ukraine (Wilson, 2005b).

⁸Because Mykola Martynenko, the former leader of the “Our Ukraine” faction in parliament, headed the board of the Razumkov Center, while Anatolii Hrytsenko, who worked for the Yushchenko campaign during the 2004 presidential elections and was minister of defense from 2005 to 2007, served as the director of the Razumkov Center from 1999 to 2004, the poll results reported by the Razumkov Center are unlikely to be biased against NATO or the EU and in favor of Russia.

POLITICAL INSTITUTIONS

Prior to the “Orange Revolution,” the system of government in Ukraine was described as a semi-democracy, a virtual democracy, or competitive authoritarianism (Way, 2005; Wilson, 2005b). Although Ukraine periodically held parliamentary and presidential elections, with the support of most oligarchs, the Kuchma-led government used administrative resources and different forms of pressure to influence the outcomes of elections. For example, secret recordings that were publicized by his former bodyguard, Mykola Melnychenko, revealed that Leonid Kuchma employed such tactics in some regions during the 1999 presidential elections. After the 2002 parliamentary elections, even though they obtained a minority of the vote, pro-Kuchma parties formed a parliamentary majority by enticing and pressuring independent deputies and deputies from other parties to join the majority (Katchanovski, 2006a, pp. 193–194). Kuchma pressured deputies to approve Volodymyr Lytvyn, the head of the presidential administration, as the speaker of parliament.

Leonid Kuchma organized a national referendum in 2000 in order to increase his already significant presidential powers and to reduce the powers of parliament. He wanted to create an upper house of parliament, which would include primarily regional representatives, many of whom would be appointed by the president. Another proposal of his gave the president the power to dissolve the parliament if no majority was formed within one month or if the budget was not approved within three months. Although the official results showed that the majority of voters backed his proposals, the results of the referendum were not recognized by the OSCE and the parliament did not adopt these proposals. Similarly, Leonid Kuchma prompted the Constitutional Court to rule that the two-term limit for the presidency did not apply to him, because the new Ukrainian constitution, which included this limit, was passed during his first term.

During the 2004 presidential elections, the government used administrative means to force employees of various government organizations, including the police, the army, prisons, public universities, schools, and hospitals, to campaign and vote for Prime Minister Viktor Yanukovich, who was backed by Leonid Kuchma and most oligarchs. Government officials were involved in the manipulation of the electronic system for counting votes in the second round of the 2004 elections. The voter turnout in the Donetsk region and the Luhansk region in the second round of the elections was artificially inflated to increase the number of votes for Yanukovich. Exit polls conducted by KIIS and the Razumkov Center showed that such administrative manipulation and falsification of the official election results of the second round denied Viktor Yushchenko his victory (Wilson, 2005a).

Most Western and Ukrainian observers and experts recognized the repeat second round of the 2004 presidential elections and the 2006 parliamentary elections as free and fair (*Natsionalnyi*, 2006; Wilson, 2005a). These elections, which resulted in the peaceful transition of power to the

opposition, show that political institutions in Ukraine became more democratic as a result of the "Orange Revolution." Viktor Yushchenko, who received the majority of the votes, assumed the presidency after the 2004 elections. Similarly, the 2006 parliamentary elections led to a democratic and peaceful transfer of much of the power to the former opposition, led by Viktor Yanukovich.

However, analysis of the political developments in Ukraine after the "Orange Revolution" shows that the democratization of Ukraine did not involve a revolutionary transformation but rather, it involved gradual change in political institutions. Various media reports indicate that the conditions of the peaceful transfer of power from Leonid Kuchma to Viktor Yushchenko not only included the adoption of political reform, which significantly reduced presidential powers, but also granted Kuchma *de facto* immunity from prosecution. In spite of evidence of his involvement in the death of journalist Georgii Gongadze and indications of large-scale corruption, documented, for example, in the Melnychenko secret recordings, Kuchma avoided prosecution.

Viktor Yushchenko came very close to refusing to accept the nomination of Viktor Yanukovich as prime minister after the 2006 elections. Ukrainian media reports indicate that Yushchenko had decided to turn down the Yanukovich nomination, dissolve parliament, and postpone the new elections, even though he had no clear constitutional power to do so. Viktor Yushchenko even recorded a television statement announcing this decision. However, the president changed his mind close to the final deadline, after his meeting with Viktor Yanukovich resulted in an agreement to include representatives from the "Our Ukraine" bloc in the new government and to sign a mutual declaration concerning priorities of domestic and foreign policy (*BBC Ukrainian Service*, August 3, 2006, available at www.bbc.co.uk/ukrainian/domestic/story/2006/08/06080_rada_universal_oh.shtml).

Less than a year after the anti-Orange coalition formed a parliamentary majority and the government, Viktor Yushchenko, Yulia Tymoshenko, and other leaders of the "Our Ukraine bloc" and BYuT implemented a plan to dissolve Rada even though the Ukrainian constitution allowed for the dissolution of parliament only for one of the following three reasons: (1) if no parliamentary coalition has been established after one month; (2) if Rada cannot start work during 30 days of a parliamentary session; or (3) if no new government has been formed within 60 days after the resignation of the previous government. On April 2, 2007, the president of Ukraine issued his first decree dissolving the parliament and setting a date for snap elections in May 2007. Yushchenko declared that Rada was dismissed because it was illegal for individual deputies from the "Our Ukraine" bloc and BYuT to join the non-Orange parliamentary coalition. Because the parliamentary majority and the Yanukovich government—with the exceptions of the minister of defense and the minister of foreign affairs, whom Yushchenko had nominated to these posts—refused to obey this decree, the president issued his second decree on April 26, 2007. The second decree,

which stipulated that the first decree was no longer valid, justified the dissolution of the parliament with the claim that the parliamentary coalition had not been formed within one month, even though the coalition had been formally announced 10 months earlier.

Yushchenko issued his third decree on June 5, 2007. This decree invalidated the second decree and stated that Rada was dissolved as a result of the president's agreement with the head of the government and the head of parliament. This agreement was based on the fact that "Our Ukraine" and BYuT deputies had renounced their seats and therefore the number of remaining deputies no longer made up the two-thirds majority. Yushchenko declared that such a majority was constitutionally-mandated for Rada to continue to function between elections even though a relevant article of Ukraine's constitution states that parliament is legally formed if at least two-thirds of its deputies have been elected.

Like Leonid Kuchma, Viktor Yushchenko *de facto* subjugated the parliament and the judicial system to a certain extent after the spring 2007 crisis. Yushchenko refused to recognize the legality of sessions held and laws issued by Rada between April 2007 and September 2007, with the exception of a period of several days during which he had temporarily suspended his second decree dissolving parliament. After the new parliament was elected in September 2007, the president overturned a candidacy jointly agreed upon by the Orange coalition and secured the appointment of his protégé (Arsenii Yatsenyuk) as head of parliament. When it appeared likely that the Constitutional Court would rule in May 2007 that the presidential decrees dissolving the parliament were unconstitutional, Viktor Yushchenko blocked the work of the court by dismissing its chairman and two other judges who were likely to support such a ruling (V. Chyvolunya [pseud.] in *Ukrainska pravda*, May 21, 2007, www.pravda.com.ua/en/news/2007/5/21/7817.htm). The presidential administration pressured local courts to issue favorable rulings during the spring 2007 crisis and the subsequent snap election campaign.

During the political crisis in spring 2007, the president and other state officials from the "Our Ukraine" bloc and BYuT came close to adopting undemocratic and unconstitutional measures, including the declaration of a state of emergency, the declaration of presidential rule, and the use of force to seize parliament and the government and to disperse mass actions of protest (*Korrespondent*, May 25, 2007, <http://korrespondent.net/ukraine/politics/191803>). During his standoff with parliament in May 2007, Viktor Yushchenko unilaterally took direct control over the Internal Troops away from the Ministry of Internal Affairs. At the end of May 2007, the president ordered units of the Internal Troops into Kyiv, but they were stopped by traffic police subordinate to the Ministry of Internal Affairs, which was headed by an SPU minister. Also in late May 2007, a confrontation between a presidential security unit led by the head of the State Security Service Department and a special police unit brought in personally by Minister of Internal Affairs Vasyl Tsushko to prevent Yushchenko from unilaterally dismissing the prosecutor general of Ukraine came close to

igniting a violent conflict between Orange and non-Orange forces (*Korrespondent*, May 25, 2007, <http://korrespondent.net/ukraine/politics/191803>).⁹

A comparison of election results with exit poll data and reports by international observers shows that the 2007 parliamentary elections did not involve large-scale fraud, as the second round of the 2004 presidential elections had. However, the difference of only about 1 percent between the combined vote for the two Orange blocs and the combined vote for the three non-Orange parties and blocs that entered the new parliament (the Party of Regions, the Communist Party, and the Lytvyn bloc) was within a margin of error of the exit polls. Some leaders of both Orange and non-Orange parties accused their opponents of falsification of the election results. Legal appeals launched by the Communist Party and the Socialist Party, which came about 30,000 votes short of reaching the 3 percent threshold, were unsuccessful, a result these parties attributed to the courts' lack of independence from the presidential branch.¹⁰

Viktor Yushchenko publicly voiced his plans to adopt a new version of the constitution through a national referendum without seeking its approval by parliament, although he refused to allow referendums on Ukraine's membership in NATO and the Common Economic Space (CES) and on official status for the Russian language. In March 2007, with the approval of the president, the "Our Ukraine" bloc and BYuT issued a joint statement, calling for the revocation of the 2004 political reform and shifting power to the president by changing the constitution through a national referendum. In December 2007, the president unilaterally created the National Constitutional Council, which he headed and which was tasked with devising a new constitution. Yushchenko's proposals for the new constitution, which he expected to adopt during his current presidential term, envisioned strong presidential powers, revocation of the political reform of 2004, a return to the presidential-parliamentary system, and the creation of an upper chamber of the parliament, which would be staffed by regional governors appointed by the president (Serhii Rakhmanin in *Dzerkalo tyzhnia*, February 3, 2007).

Viktor Yushchenko and other Orange leaders justified the dissolution of parliament and their plans to restore a strong presidency with claims that they were defending democracy and the will of the majority of the people as it was expressed in democratic elections. However, the unconstitutional suspension of parliament, the threat of force to implement this

⁹Like Viktor Yushchenko, who publicly blamed his opponents in the government for poisoning him before the 2004 presidential elections, before the 2007 parliamentary elections, Vasyl Tsushko alleged that he had been poisoned by his opponents from the presidential camp with heart-attack-inducing drugs during the culmination of the political crisis at the end of May 2007. In 2008, Yushchenko accused some of his Orange allies of poisoning him in 2004.

¹⁰The Vitrenko bloc, which came less than 20,000 votes short of reaching the 3 percent threshold; the Lytvyn bloc, which received 2.4 percent of the votes; and several other parties that failed to enter Rada made similar allegations of fraud during the 2006 elections.

decision and hold snap elections, and the partial subjugation of the judicial branch by the president undermined the legitimacy of democratic institutions in Ukraine. A KIIS poll conducted in the first half of April 2007 showed that 55 percent of Ukrainians, excluding those who were undecided, opposed the first presidential decree dissolving Rada. Terminating the parliament because deputies from Orange factions renounced their seats created a precedent in which a parliamentary minority could dissolve Rada. Strong presidential powers combined with the weakened legitimacy of democratic institutions could help a democratically elected but authoritarian-leaning leader to further undermine democracy in Ukraine. The situation in Ukraine has some parallels with the situation in Russia after President Yel'tsin weakened prospects for liberal democracy by dissolving the Russian parliament with help of force, suspending the Constitutional Court, and adopting a new constitution that created a powerful presidency by means of a referendum in 1993 (Katchanovski, 1995). Vladimir Putin, who was elected to the presidency after Boris Yel'tsin, used strong presidential powers and the lack of legitimacy of democratic institutions to establish a semi-authoritarian political system in Russia.

An analysis of the post-2004 developments in Ukraine does not show a rapid transformation of the Party of Regions into a pro-democratic, Western-type party in spite of its reliance on American political consultants. The Party of Regions tried to use various undemocratic means to stay in power after the 2006 elections. For example, at the beginning of 2007, Party of Regions leaders were recruiting individual deputies from the two Orange factions in order to create a veto-proof majority in parliament, not only by enticing them to join the coalition but also by pressuring their businesses. Viktor Yanukovych and other leaders of the Party of Regions and the anti-Orange parliamentary coalition disobeyed the first two presidential decrees to dissolve Rada, but they later made an informal deal with the president in order to remain in power. The Party of Regions used its influence in local courts, primarily in its strongholds in eastern Ukraine, to suspend the first presidential decrees disbanding parliament. Some leaders of the Party of Regions raised the possibility of invalidating the results of the 2004 presidential elections and holding new presidential elections ahead of schedule or having the president elected by parliament (*Ukrainska pravda*, February 28, 2007, www.pravda.com.ua/news/2007/2/28/55122.htm). Neither of these options, which aimed at reversing the results of the democratic presidential elections, was constitutional.

The anti-Orange coalition used parliamentary votes on the adoption of key laws and the appointment of the minister of foreign affairs whom Viktor Yushchenko proposed to undermine the authority of the democratically elected president. A law on the cabinet of ministers, proposed by the Party of Regions and vetoed by the president—but adopted by a veto-proof majority with the help of Yulia Tymoshenko bloc deputies—increased Prime Minister Viktor Yanukovych's power and correspondingly decreased the power of the president, going beyond the changes envisioned by the political reform legislation that became part of the

constitution. For example, the constitution gave the president the right to nominate the foreign and defense ministers, but the law gave the parliament the right to make these nominations if the president failed to do so within a specified time period. The Party of Regions deputies physically blocked the work of parliament for several weeks at the beginning of 2008 to protest plans of Orange leadership to join NATO.

The actions and plans of the president, the prime minister, the anti-Orange coalition, and the Orange opposition, which aimed to reverse the results of the 2006 democratic elections, all show that political institutions in Ukraine did not become fully democratic. In a similar fashion, statements by various political leaders demonstrate that the democratic form of government in Ukraine has not been completely accepted. For example, Yulia Tymoshenko accused the Party of Regions of staging a coup when this party formed a coalition with the Socialist Party and the Communist Party (*Korrespondent*, February 23, 2007, <http://ua.korrespondent.net/main/67280/>). Similarly, Viktor Baloha, head of the presidential administration and leader of the pro-presidential "Our Ukraine" party, described the actions of the Yanukovich government and the parliamentary coalition that were aimed at reducing presidential power as a coup attempt (*Ukrainska pravda*, February 24, 2007, www2.pravda.com.ua/news/2007/2/24/54950.htm). Vasyl Kiseliov, deputy leader of the Party of Regions faction, stated that plans for the dissolution of Rada by the president amounted to a *coup d'état* (*Ukrainska pravda*, February 28, 2007, www.pravda.com.ua/news/2007/2/28/55122.htm). Oleksandr Moroz, the head of the disbanded parliament, described Yushchenko's plan to adopt a new constitution by referendum as a state coup that would provide legal cover for a dictatorship (*Ukrainska pravda*, October 10, 2007, <http://pravda.com.ua/news/2007/7/10/61312.htm>).

The "Orange Revolution" diminished the political power of some oligarchs. Oligarchs, with their formal and informal power, were a key element of the political system prior to the "Orange Revolution." Oligarchs close to Leonid Kuchma often had their own parties, occupied influential positions in the executive branch, and wielded significant influence in parliament. For example, Viktor Medvedchuk, one of the richest Ukrainian businessmen, headed the Social Democratic Party of Ukraine (United) and served as the head of Leonid Kuchma's presidential administration. Viktor Pinchuk, a billionaire and Kuchma's son-in-law, controlled the "Working Ukraine" deputy faction in parliament. As the result of the "Orange Revolution," both Medvedchuk and Pinchuk lost most of their political power, and their parties failed to enter the parliament after the 2006 elections.

However, a number of other oligarchs significantly increased their formal and informal power after the "Orange Revolution." Viktor Yushchenko selected Yulia Tymoshenko to be the first prime minister of the Orange government after the 2004 elections. In the mid-1990s, she had become one of the richest people in Ukraine through her ties to Pavlo Lazarenko, who was prime minister during Kuchma's first presidency, but

Leonid Kuchma later disbanded her business empire. However, Tymoshenko managed to maintain control over a political party that she had created with Pavlo Lazarenko before he was arrested and convicted in the United States on money-laundering charges. She was arrested on business-related charges in Ukraine in 2001, and the criminal case against Lazarenko in the United States revealed evidence of her participation in his corrupt transactions. Viktor Yushchenko justified his dismissal of Yulia Tymoshenko from the prime minister's post in September 2006 by alleging her involvement in new instances of large-scale corruption. However, after the 2007 elections Yulia Tymoshenko became the prime minister again.

Viktor Yushchenko appointed two of Ukraine's richest businessmen as heads of the National Security and Defense Council. Petro Poroshenko, a leader of an influential faction within the "Our Ukraine" party, became the first head of the Council in 2005 with significantly expanded authority granted him by Yushchenko. Poroshenko lost this post in September 2005 as a result of accusations of corruption. Vitalii Haiduk, a billionaire oligarch from the Donetsk region, headed the National Security and Defense Council from October 2006 until his resignation during the height of the political crisis in spring 2007.

Viktor Yushchenko and the first Orange government initiated attempts to prosecute some oligarchs from the non-Orange camp. Renat Akhmetov, the richest Ukrainian oligarch and one of the informal leaders of the Party of Regions, had to leave Ukraine for some time after the "Orange Revolution" to avoid an investigation into his alleged role in organized crime in the Donetsk region. In 2005, Borys Kolesnikov, a rich businessman and a friend of Renat Akhmetov since their alleged involvement in organized crime in the late 1980s and early 1990s and his close associate in the Party of Regions, was arrested by the Orange government on charges of extortion and conspiracy to assassinate a rival Donetsk businessman. In 2005, Yushchenko had initiated the successful reversal of Renat Akhmetov and Viktor Pinchuk's Kuchma-backed non-competitive privatization of Kryvorizhstal, the largest Ukrainian steel mill (which later sold for \$4.7 billion).

However, Renat Akhmetov's political influence rose significantly after the investigations against him and Borys Kolesnikov were dropped, and the Party of Regions formed the government in August 2006. Although Akhmetov formally became only a parliamentary deputy from the Party of Regions, he is often considered either as influential as Viktor Yanukovich, or the second most influential leader in the Party of Regions (Serhii Leshchenko in *Ukrainska pravda*, March 3, 2007, www.pravda.com.ua/news/2007/3/3/55283.htm). As a part of the resolution of the political crisis in the spring of 2007, Viktor Yushchenko made an informal deal with Renat Akhmetov and Akhmetov's faction of the Party of Regions, which hoped to retain power by forming a broad coalition with the "Our Ukraine" after the snap parliamentary elections. The president of Ukraine rewarded Akhmetov and his close political associates for their agreement to accept the dissolution of the parliament. The president did not take any actions to reverse a non-competitive privatization of Dniproenergo, Ukraine's

biggest power-generating company (estimated to be worth about \$1.5 billion), by Akhmetov in the summer of 2007. After the Party of Regions went into opposition as a result of the 2007 elections, Yushchenko awarded Borys Kolesnikov a state order for his role in settling the spring 2007 crisis and offered him the position of head of the National Security and Defense Council. After Kolesnikov declined to accept this position, Viktor Yushchenko appointed Raisa Bogatyreva, another leader of the Party of Regions from Akhmetov's faction and the former Minister of Healthcare during Kuchma's presidency, as the head of the National Security and Defense Council (Oleksii Mustafin in *Dzerkalo tyzhnia*, December 29, 2007).

Because a peaceful transfer of power in free and fair elections is a key criterion of democracy, the next presidential elections, which are scheduled for January 2010, will provide a test of whether democratic or authoritarian trends will prevail and whether the political system in Ukraine could be defined as democratic or non-democratic. A hybrid regime, combining democratic and authoritarian features, is the most likely outcome of Ukraine's development in the near future. Viktor Yushchenko might resort to certain non-democratic means, a number of which he already entertained, to retain his presidential power for the second term while Yulia Tymoshenko and Viktor Yanukovych might employ various non-democratic means to gain and consolidate power. However, none of the three top contenders is very likely to become a full-fledged dictator and introduce an authoritarian political system similar to authoritarian systems existing in Belarus or Uzbekistan even though such a possibility cannot be completely excluded. Viktor Yushchenko, Yulia Tymoshenko, and Viktor Yanukovych and their parties have regional bases of support in the population and among local elites, and an attempt to usurp power made by any them would be regarded as illegitimate in other regions. Ukraine is likely to remain relatively more democratic in comparison with Georgia, Kyrgyzstan, and Russia. However, a consolidation of a democratic political system, like the ones established in the Czech Republic or Poland, is an unlikely possibility in the near future in Ukraine because of certain non-democratic leanings of the main political leaders and parties, and the strong influence of oligarchs who strive to "capture" the state to protect and increase their wealth.

POLITICAL LEADERS

Official results of the 2004 presidential elections gave Viktor Yushchenko 39.9 percent of the national vote in the first round, compared to 39.3 for Viktor Yanukovych, his main opponent. In a repeated second round, Viktor Yushchenko received 52.0 percent of the votes compared to 44.2 percent for Yanukovych (Central, 2004).¹¹ Viktor Yushchenko's victory and Viktor Yanukovych's defeat in the democratic elections were regarded as popular support for a democratic pro-Western revolution in Ukraine. However, many of Yushchenko's voters and participants in mass actions supporting him were motivated not by his ideology but by his personal

charisma. For example, a Razumkov Center poll conducted in October 2002, when he was the most popular presidential candidate, showed that the primary reasons for Yushchenko's popularity were as follows: the belief that he had improved the economic situation in Ukraine while serving as prime minister, in particular by dramatically reducing wage and pension arrears, and his positive personal qualities. Forty-two percent of the respondents who agreed that Viktor Yushchenko was a popular politician attributed his popularity to his positive influence on the economy, and 34 percent cited his perceived personal qualities, such as wisdom and good looks.¹² Only 3 and 5 percent of the respondents associated his popularity with his pro-Western orientation and his commitment to a democratic path of development of Ukraine, respectively.

Poll data indicate that support for Viktor Yushchenko has declined significantly since 2004. In contrast, support for Viktor Yanukovich, whose popularity in 2002 and 2003 lagged behind that of Viktor Yushchenko and Petro Symonenko (a Communist Party leader), rose sharply during the 2004 elections, and it has remained relatively stable since (see Figure 1). A Razumkov Center poll conducted in April 2008 showed that if the presidential elections were held at that time, Viktor Yushchenko would probably have lost to Viktor Yanukovich and Yulia Tymoshenko in the first round. Only about 15 percent of potential voters, excluding the undecided, would have supported Yushchenko, while 35 percent would have backed Yanukovich.

Public backing for Yulia Tymoshenko as a presidential candidate jumped from about 7 percent in 2002 to 32 percent in 2008 (Figure 1). The rise of Tymoshenko's popularity is attributed not only to her association with the Orange camp but also to her charisma and populism. Tymoshenko's inability to fulfill her populist promises, such as payment of all bank savings lost after the collapse of the Soviet Union, lowering prices, and an immediate end to the military draft, could undermine her charisma. The sharp drop in public support for Viktor Yushchenko after he became president exemplifies the instability of political leaders' charismatic appeal.

An analysis of the background and behavior of the leaders of the "Orange Revolution" is more revealing than their revolutionary speeches on Maidan¹³ and their election campaign slogans. This analysis shows that most of the key Orange leaders had previously been supporters of President Kuchma or members of the Soviet elite.¹⁴ Viktor Yushchenko headed the National Bank and was prime minister during the presidency of Leonid Kuchma, and he supported Kuchma during the Melnychenko recordings

¹¹The decision by Moroz, who came in third, with 5.8 percent of the votes in the first round of the 2004 presidential elections, to back Viktor Yushchenko and not Viktor Yanukovich in subsequent rounds was a significant factor in the Yushchenko victory.

¹²Undecided respondents are excluded.

¹³"Maidan" is a shorthand for Independence Square in Kyiv City. This square ("*maidan*" in Ukrainian) was a staging place for pro-Yushchenko rallies during the "Orange Revolution."

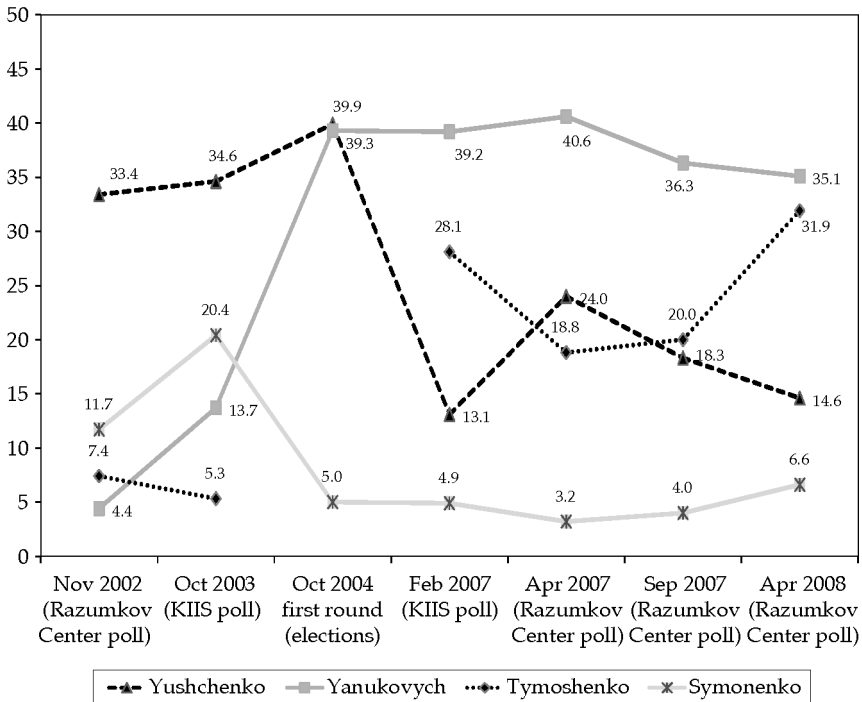


Fig. 1. Vote for main presidential candidates: Official results of the first round of the 2004 presidential elections and poll estimates (percent). *Source:* Central (2004) and national polls conducted by KIIS and the Razumkov Center.

scandal. Yushchenko became a leader of the opposition only after his government was dismissed with Kuchma's support in 2001. Although his ideology, which combines elements of nationalism, populism, and liberalism, and his foreign policy orientation differ significantly from the ideologies and foreign policy orientations of Leonid Kuchma and Leonid Kravchuk in some key aspects, there are also similarities. For example, Viktor Yushchenko is much more pro-Western than Kuchma and Kravchuk, but he embraced evolutionary change in foreign policy and opposed a revolutionary break with Russia that would include, for example, an immediate withdrawal from the Commonwealth of the Independent States (CIS) and abandonment of the Common Economic Space. In

¹⁴Because many Orange leaders were linked through personal ties and business dealings to previous government leaders and pro-Kuchma oligarchs, former top officials who were responsible for the falsification of the 2004 presidential elections and for the corrupt privatization of Kryvorizhstal and many other large state enterprises avoided prosecution in spite of the incriminating evidence provided by the Melnychenko recordings and other sources.

comparison, Leonid Kuchma advocated a multi-vectorial foreign policy that included both integration in the Russia-led Common Economic Space and memberships in CIS and NATO.

After the 2006 parliamentary elections, Viktor Yushchenko explored possibilities for the "Our Ukraine" bloc to enter a joint coalition with the Party of Regions. Similarly, after the 2007 elections, he publicly called for providing the oppositional Party of Regions with positions in the new government. It is a real possibility that, because of political disagreements and personal rivalry with Yulia Tymoshenko, Yushchenko might force a breakup of the second Orange coalition and press for a coalition with the Party of Regions in exchange for support from his former adversaries for his candidacy during the next presidential elections.

Yulia Tymoshenko, who was a key supporter of Viktor Yushchenko during the 2004 elections and who became the prime minister of two Orange governments, is a power-seeking oligarch who has frequently changed her political allies and political orientation to achieve this goal. She started her political career by joining a pro-Kuchma faction in the parliament of Ukraine and then became a leader of the pro-Lazarenko party Hromada. Tymoshenko turned to the anti-Kuchma opposition as a result of her personal conflict with the former president and his inner circle over economic revenues from the control of natural gas delivery. After Tymoshenko was briefly imprisoned in 2001, she became one of the leaders of the anti-Kuchma opposition movement. Before the 2004 presidential elections, in a secret written agreement with Viktor Yushchenko, Yulia Tymoshenko had agreed to support his bid for the presidency in return for the position of prime minister (Katchanovski, 2006a).

However, Yulia Tymoshenko *de facto* joined the anti-Yushchenko opposition after her dismissal in 2005. For example, her faction voted against the nomination of Yurii Yekhanurov as new prime minister in September 2005, and it voted in favor of dismissing his government in January 2006. In January 2007, Tymoshenko made a deal with the Party of Regions, the Communists, and the Socialists to overcome the presidential veto on the law on the cabinet of ministers, which significantly diminished the powers of Viktor Yushchenko. In February 2007, she signed an agreement with the pro-presidential party "Our Ukraine" on forming a joint opposition to the parliamentary coalition. Even though Yulia Tymoshenko publicly campaigned against a coalition with the Party of Regions, her bloc held secret negotiations with the Yanukovych party concerning a joint coalition after the 2006 elections. Soon after the new Orange alliance returned to power and she became prime minister, Yulia Tymoshenko stated that she did not exclude a possibility of forming a coalition with the Party of Regions (*Ukrainska pravda*, January 30, 2008, www.pravda.com.ua/news/2008/1/30/70703.htm). In April 2008, Tymoshenko reneged on her agreement with Viktor Yushchenko to create a strong presidential system, and she announced her plans to weaken Yushchenko's authority by changing the constitution in the parliament by the fall of 2008. Her plan, which is similar to proposals put forward by the Party of Regions and the Communist Party,

envisions a parliamentary system with a powerful prime minister and a weak president.

Yurii Yekhanurov, the second Orange prime minister of Ukraine, number one on the list of the Yushchenko bloc "Our Ukraine" during the 2006 parliamentary election, and minister of defense in the second Tymoshenko government, was a member of various governments during Kravchuk's and Kuchma's presidencies. He served as the first deputy head of the presidential administration under Leonid Kuchma. Roman Bezsmertnyi, a leader of the People's Union "Our Ukraine" Party during the 2006 elections, was Kuchma's representative in parliament. Oleksandr Zinchenko, the first head of the administration of President Yushchenko and an organizer of his presidential campaign, was a Komsomol leader in charge of propaganda in Soviet Ukraine and the Soviet Union in the late 1980s. From the mid-1990s until 2003, Zinchenko was one of the leaders of the Social Democratic Party of Ukraine (United), which supported Leonid Kuchma. Similarly, Viktor Baloha, another head of the presidential administration, which, like Viktor Medvedchuk during Kuchma's presidency, he turned into a shadow government, was a regional leader of the Social Democratic Party of Ukraine (United).

Ivan Plyushch, who was appointed by Viktor Yushchenko as head of the National Security and Defense Council during the political crisis in May 2007, was a regional official in the Communist Party of Soviet Ukraine in the 1980s, and he served as the Chairman of the Ukrainian parliament during Kuchma's second presidency. Plyushch refused to join the Orange parliamentary coalition after the 2007 elections because of his support for a broad coalition that would include the Party of Regions. Petro Poroshenko, the first head of the National Security and Defense Council after the "Orange Revolution," started his political career by organizing a pro-Kuchma faction in parliament and becoming one of the leaders of a party that was a predecessor of the Party of Regions. Arsenii Yatsenyuk, who became minister of foreign affairs in the second Yanukovych government and the head of the parliament after the 2007 elections, was acting chief of the National Bank before the 2004 presidential elections.

Many key ministers in Orange cabinets were members of previous governments. For example, Yurii Lutsenko, Minister of Internal Affairs in two Orange governments and number one on the list of the "Our Ukraine"—"People's Self-Defense" bloc during the 2007 parliamentary elections, served as deputy minister in the end of the 1990s and was one of leaders of the Socialist Party, dominated by former communist officials. Borys Tarasyuk, the foreign minister in Tymoshenko's and Yekhanurov's governments, and number three on the electoral list of the Yushchenko Bloc during the 2006 parliamentary elections, was a top official in the Central Committee of the Communist Party of Soviet Ukraine and the Ministry of Foreign Affairs of Soviet Ukraine. He was deputy foreign minister from 1992 to 1995 and foreign minister during Kuchma's presidency from 1998 to 2000. Volodymyr Ogrzyzko, Minister for Foreign Affairs in the second Tymoshenko government, was head of the foreign policy department in the

Kuchma administration. Anatolii Kinakh, number two on the list of the Yushchenko bloc during the 2006 parliamentary elections, a deputy prime minister in the first Tymoshenko cabinet, and then head of the National Security and Defense Council, served as prime minister of Ukraine from 2001 to 2002. He was one of the leaders of the pro-Kuchma "For United Ukraine" during the 2002 parliamentary elections, but switched his support to Viktor Yushchenko in the second round of the 2004 presidential elections (Katchanovski, 2006a). In March 2007, Kinakh joined the Yanukovych government.

In addition to Viktor Yushchenko and Yulia Tymoshenko, many other leading Orange politicians, such as Yurii Yekhanurov, Ivan Plyushch, Petro Poroshenko, Roman Bezsmertnyi, and Anatolii Kinakh, explored the possibility of a coalition of the "Our Ukraine" bloc with the Party of Regions after the 2006 and 2007 elections. Oleksandr Moroz, leader of the Socialist Party of Ukraine, which conditionally supported Viktor Yushchenko in the second round of the 2004 presidential elections and participated in the first two "Orange governments," joined the anti-Orange coalition along with the Party of Regions and the Communist Party in summer 2006. He was the leader of the communist faction in the parliament of Soviet Ukraine from 1990 to 1991, and speaker of the parliament from 1994 to 1998, a post that he again occupied from 2006 to 2007.

POLITICAL PARTIES

The blocs of the political parties that came to power as a result of the "Orange Revolution" not only differed from previous parties of power, such as the People's Democratic Party (NDP), and the oligarchic parties, such as the Social Democratic Party (United), in their ideological orientations, but each electoral bloc was also marked by internal divisions. The Yushchenko bloc "Our Ukraine" included such nationalist parties as the Congress of Ukrainian Nationalists and two successor parties of Rukh, such liberal parties as the Reform and Order Party (PRP), and such oligarchic groups as Solidarity, led by Petro Poroshenko. The "Our Ukraine" bloc was the leading proponent of a pro-Western orientation for Ukraine, including membership in NATO and the European Union (EU).

The Yulia Tymoshenko bloc was established on the basis of an oligarchic party (Batkivshchyna) led by Tymoshenko. BYuT includes a social democratic party (Ukrainian Social Democratic Party) and, since 2007, the Reform and Order Party. This bloc absorbed a faction of a nationalist party (the Ukrainian Republican Party), an oligarchic faction of the "For United Ukraine" bloc, and many former pro-Kuchma and pro-Yanukovych deputies and businessmen. Although it contained certain pro-Western and nationalist ideas, the ideology advocated by BYuT was mainly populist. For example, Yulia Tymoshenko based her bloc's 2007 election campaign on popular but unrealistic promises, such as securing low prices on meat, petrol, and natural gas, raising wages and pensions several fold, reimbursing all lost bank savings from the Soviet period, and ending the military

draft within three months after the elections. In contrast to "Our Ukraine," BYuT preferred not to publicize its stance on NATO and relations with Russia during its electoral campaigns.¹⁵ The supporters of BYuT differed significantly in their political values from the supporters of the Yushchenko bloc. For example, a KIIS poll in February 2006 showed that 40 percent of voters likely to vote BYuT were in favor of Ukraine joining some form of union of Russia and Belarus, compared to 19 percent of voters likely to vote for the "Our Ukraine" bloc.

The Socialist Party, which supported Viktor Yushchenko in the second round of the 2004 elections, had supported a Communist Party candidate in the second round of the 1999 presidential elections. The Socialist Party gradually moved towards social-democratic ideology after its more radical and pro-Russian wing split off to form the Progressive Socialist Party, but the SPU was organized by former functionaries of the Communist Party of the Soviet Union in Ukraine. However, the SPU has not become a truly social-democratic party. For instance, during the 2006 parliamentary elections, more than one-fourth of the SPU's parliamentary candidates were managers and businessmen, and none were workers. The Socialist Party maintained ties with social democratic parties of the Socialist International, as well as with Rodina, the Russian socialist and nationalist party (Katchanovski, 2006a, p. 66). In contrast to "Our Ukraine," the SPU opposed membership in NATO and supported making Russian the second official language in Ukraine. The SPU, except for a minority of its leadership, switched to a coalition with the Party of Regions and the Communist Party in the summer of 2006.

The Orange coalition, which was formed during the 2004 presidential elections, was united not by a common revolutionary ideology but by its opposition to President Kuchma's regime and to Viktor Yanukovych, a Kuchma-backed successor who had a criminal record. This coalition consisted of populists, nationalists, liberals, socialists, and politically active businesswomen and businessmen, including a few oligarchs. The Orange alliance was formed on the basis of the "Ukraine without Kuchma" opposition movement, minus the Communists. From 2001 to 2002, such diverse parties as BYuT, the SPU, the CPU, the radical nationalist Ukrainian National Assembly, and several parties that later joined the "Our Ukraine" bloc united in an unstable and shifting alliance in an attempt to oust the president after Oleksandr Moroz made public secret recordings of President Kuchma's conversations, which implicated Kuchma in various crimes. Viktor Yushchenko, who initially refused to support this movement and even condemned it as fascist in a joint public statement with Leonid Kuchma and Ivan Plyushch (the speaker of parliament), became a popular leader of the opposition after he was dismissed as prime minister of Ukraine in 2001.

¹⁵Personal observation at a Tymoshenko election rally in Lutsk on September 25, 2007, and BYuT election ads in Ukrainian mass media.

The defeat of Kuchma's plans for re-election to a third term and the popular but peaceful defeat of Viktor Yanukovich during the 2004 presidential elections meant that the Orange coalition's *raison d'être* had come to an end, and the Orange coalition fractured soon after the elections. Less than a year after the 2004 elections, Viktor Yushchenko dismissed Yulia Tymoshenko from her position as prime minister because of intense internal conflicts. Because of Tymoshenko's opposition, which allegedly included plans to impeach the president, Viktor Yushchenko signed an agreement with the Party of Regions in September 2005. In exchange for the support of the Yekhanurov government, the agreement provided *de facto* immunity to leaders of the Party of Regions and an amnesty for those who organized the falsification of the 2004 presidential elections.

Ideological and personal differences hindered a restoration of the coalition of the "Our Ukraine" bloc, the Yulia Tymoshenko bloc, and the Socialist Party after the March 2006 parliamentary elections. Although such a coalition was formed after three months of negotiations, it broke apart after the majority of the Socialist Party faction switched sides in July 2006. Ten percent of deputies from the "Our Ukraine" bloc and BYuT abandoned their factions and joined the anti-Orange coalition within a year after the 2006 elections.

The second Orange coalition, formed after the 2007 elections, is a tactical alliance that is also likely to disintegrate because of ideological and personal disagreements within its ranks. (This coalition broke apart in Fall 2008, when this article was in press.) In spite of its two-seat majority in Rada, the Orange coalition was not able to approve Yulia Tymoshenko as prime minister during its first vote attempt. The Orange coalition relied on deputies from the opposition, in particular from the Communist Party, in several key votes in the parliament, because a significant number of deputies from the "Our Ukraine"–"People's Self-Defense" bloc refused to vote along with other deputies from their bloc and BYuT. Viktor Yushchenko, Yulia Tymoshenko, and other Orange leaders voiced their disagreements over important policy and political issues numerous times soon after the coalition was formed. After four months in power, the second Orange coalition was on the verge of a breakup. For example, on April 16, 2008, BYuT issued a statement that accused Viktor Yushchenko and his allies of sabotaging key government initiatives, dividing the Orange coalition, and posing a threat to the independence of Ukraine. In turn, the leader of the "Our Ukraine"–"People's Self-Defense" bloc faction and several deputies from the bloc accused BYuT of breaking the Orange coalition apart, joining with the Party of Regions and the Communist Party, and staging a state coup by introducing constitutional changes designed to weaken presidential powers significantly.

The Orange forces, which included the Yushchenko bloc "Our Ukraine," the Yulia Tymoshenko bloc, and their allies at the time of the 2002 elections, increased their combined share of the national vote from 31 percent in 2002 to 40 percent in the 2006 parliamentary elections and then to 45 percent in the 2007 elections. However, the 2006 and 2007 elections

Table 1. Support for Major Parties and Blocs in the Parliamentary Elections in 2002–2007 (percent)^a

	March 2002	March 2006	September 2007
Yushchenko bloc “Our Ukraine” and its former allies ^b	23.6	17.9	14.2
Yulia Tymoshenko bloc	7.3	22.3	30.7
Socialist Party	6.9	5.7	2.9*
Party of Regions and its former allies ^c	11.8	35.1	38.3
Communist Party	20.0	3.7	5.4
Nataliya Vitrenko bloc ^d	3.2*	2.9*	1.3*
Social Democratic Party of Ukraine (United) ^e	6.3	1.0*	–

^aSource: Central (2002, 2006, 2007). Parties and blocs that did not clear the electoral thresholds are indicated by an asterisk.

^bPora-PRP bloc, the Ukrainian People’s bloc, and Yuri Karmazin bloc in 2006.

^c“For United Ukraine” bloc in 2002, the People’s bloc of Lytvyn, the People’s Democratic Party, and the Working Ukraine party in 2006, and the bloc of Lytvyn in 2007.

^dThe Progressive Socialist Party in 2007.

^eThe Opposition bloc “Ne Tak” in 2006.

showed a decline in support for the Yushchenko bloc “Our Ukraine.” This bloc and allied parties received about 18 percent of the national vote in 2006 and 14 percent in 2007, compared to almost 24 percent in 2002. The Yulia Tymoshenko bloc gained significant support, which jumped from 7 percent in 2002 to 22 percent in 2006. In the 2007 elections, BYuT gained almost 31 percent of the national vote (see Table 1). Like poll data showing a rise in popular backing of Yulia Tymoshenko since the 2007 elections, a Razumkov Center poll in April 2008 showed that her electoral bloc increased its support among probable voters to about 36 percent. In contrast, support for the “Our Ukraine”–“People’s Self-Defense” bloc decreased somewhat to 11 percent.

Anti-Orange parties and their former allies also increased their share of the national vote in the parliamentary elections held since 2002. Their combined support remained somewhat higher than support for Orange electoral blocs. Even with votes for the Socialist Party excluded from the totals, these parties gained 41 percent of the votes in 2002, 43 percent in 2006, and 45 percent in the 2007 elections. The “For United Ukraine” bloc, which included the Party of Regions, got 12 percent of the national vote in 2002. During the presidential election campaign in 2004, the popularity of the Party of Regions was boosted through then–Prime Minister Viktor Yanukovich’s use of administrative resources. For example, such administrative methods as *temnyky* (detailed coverage guidelines issued by

President Kuchma's administration) ensured favorable and free-of-charge television coverage for Viktor Yanukovich and his party during the 2004 campaign. In 2006, the Party of Regions and its former allies (Lytvyn's People's bloc, the People's Democratic Party, and the Working Ukraine Party), which all ran separately, received 35 percent of the votes. The Party of Regions and its former allies from the "For United Ukraine" bloc got 38 percent of the national vote in the snap parliamentary elections in 2007 (Table 1). The 2008 Razumkov Center poll showed that support for the Party of Regions stood at the same level as at the 2007 elections (34 percent). Support for the Communist Party dropped from 20 percent in 2002 to less than 4 percent in 2006, but it increased to more than 5 percent in 2007. Seven percent of probable voters expressed their readiness to vote for the Communist Party candidates in the Razumkov Center poll conducted in April 2008.

The Party of Regions and the Communist Party both expressed a pro-Russian orientation in foreign affairs and language policy. Both parties supported making Russian the second state language in Ukraine and opposed NATO membership. However, they differed in other aspects of their pro-Russian orientation. The Party of Regions focused on cooperation between Ukraine and Russia in the areas of economic and foreign relations, and cultural policy. For example, Viktor Yanukovich and some other leaders of the Party of Regions voiced their support for Ukraine's participation in the Common Economic Space. The Common Economic Space was envisioned as a form of economic union of Russia, Ukraine, Belarus, and Kazakhstan that might eventually include a customs union, a common currency, and a supranational commission on trades and tariffs. In contrast, the Communist Party favored not only closer economic and cultural ties but also some form of union with Russia and other post-Soviet states such as Belarus. Such a union meant either a confederation of Ukraine and Russia, and possibly other post-Soviet states, or a Russia-Belarus type of loose union; the party did not elaborate by providing details.

Support for the Socialist Party did not change much in the 2006 elections compared to the 2002 elections. However, this party failed to enter parliament in September 2007 because it received slightly less than 3 percent of the votes, the minimal threshold. The Social Democratic Party of Ukraine (United) and the pro-Russian Nataliya Vitrenko bloc, both of which relied on an extensive presence in mass media to boost their popularity during Kuchma's presidency, have experienced a sharp decline in their electoral support since 2002, and they did not enter parliament in 2006 or 2007 (Table 1).

POLITICAL ATTITUDES

Survey data show that since 2004 Ukrainians have not become more supportive of key ideas put forward by Viktor Yushchenko during his presidential campaign and in his term as president. These ideas include backing Ukraine's membership in NATO and the European Union, and his

stance against full integration into the Russian-led Common Economic Space and against giving Russian status as second state language or as an official language in Russian-speaking regions. In contrast, most Ukrainians continued to express support for aims advanced by Viktor Yanukovych, such as opposition to NATO membership, support for Ukraine's integration into the Common Economic Space, and support for Russian as the second state language in Ukraine. During the 2007 parliamentary election campaign, the Party of Regions called for national referendums on whether Ukraine should become a member of NATO and on making the Russian language the second state language, and it submitted several million signatures in support of such referendums to the Central Election Commission.

Razumkov Center polls show that support for Ukraine joining NATO reached 50 percent in June 2002, not long after 9/11 and soon after Leonid Kuchma declared that gaining NATO membership was a strategic objective. Since that time, the proportion of NATO backers has declined significantly as a result of the US invasion of Iraq in 2003 and of the Party of Regions' switch during the 2004 presidential campaign from backing Kuchma's stance on NATO to opposing NATO membership. Less than a quarter of Ukrainians who made up their minds on this issue (20 to 23 percent) were ready to endorse NATO membership if a national referendum were held in 2005–2007. Although public support increased somewhat in the beginning of 2008 when the issue of Ukraine's potential membership in NATO was on the agenda of the NATO summit in Bucharest, only 28 percent of Ukrainians, excluding non-voters and the undecided, were willing to vote for such a membership if a national referendum were held at that time (Figure 2). Although the main political leaders and parties agreed upon the need for such a referendum in principle, as a compromise, the timing and binding nature of such a referendum was in dispute.

Viktor Yushchenko and other Orange leaders attributed the high level of opposition to NATO to the legacy of Soviet anti-NATO propaganda. They stated that a government-sponsored pro-NATO information campaign would make most Ukrainians supportive of membership in the North Atlantic Alliance. However, the 2008 Razumkov Center survey shows that although a generation that was born or reached adulthood in independent Ukraine (18- to 29-year-olds) expresses a higher level of support for NATO (36 percent) than older generations (for example, 30 percent among 30- to 39-year-olds and 24 percent among those 60 and older), the majority of the young respondents (64 percent) are against NATO membership. The Soviet propaganda argument is also contradicted by the fact that western Ukrainians (70 percent in February 2008) remained supportive of NATO, while the respondents from the eastern, southern, and central regions (11, 15, and 30 percent, respectively) opposed Ukraine joining the alliance (Informatsiina, 2008, pp. 56–57).

The absolute majority of Ukrainians who had made up their minds on this issue continued to favor joining the EU in the years before and after

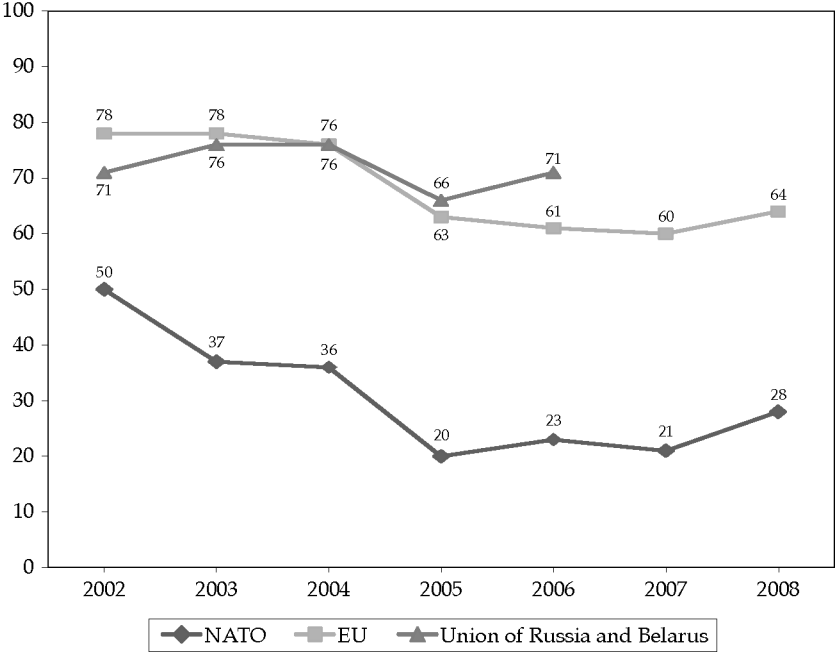


Fig. 2. Support for Ukraine’s membership in NATO and the European Union (Razumkov Center polls) and a union of Russia and Belarus (the Institute of Sociology polls) (percent). “Don’t know” and “not sure” are excluded. *Source:* Calculated from Informatsiina (2008, p. 50 and pp. 56–57) and Panina (2005, p. 36).

the 2004 elections. However, the level of such support declined from 78 percent in February 2002 to 64 percent in February 2008 (see Figure 2). In KIIS polls conducted in September 2004 and January 2006, similar proportions of the respondents (37 and 36 percent, respectively) agreed that the people of Ukraine would be better off living in the EU than in a union with Russia and Belarus. The majority of Ukrainians, excluding those who were undecided, in both 2004 and 2006 (63 and 64 percent, respectively) regarded a union of Russia and Belarus as preferable to membership in the European Union.

The 2005 KIIS/Razumkov Center poll shows that the overwhelming majority of respondents (74 percent) agreed that Ukraine should join the Common Economic Space, which includes Russia, Belarus, and Kazakhstan. A quarter (26 percent) of Ukrainians, excluding those who were undecided, opposed Ukraine’s membership in the CES. In contrast, support for Ukraine’s withdrawal from the Commonwealth of Independent States, which would constitute a revolutionary move in foreign policy, increased from 12 percent in the 1995 KIIS poll to 23 percent in the 2005 KIIS/Razumkov Center Poll. However, excluding the undecided, the

absolute majority of Ukrainians opposed such a withdrawal both in 1995 and 2005 (88 and 77 percent, respectively).

A comparison of surveys conducted before and after the 2004 elections shows certain changes in public views on preferred relations between Ukraine and Russia. The surveys conducted by Institute of Sociology of the National Academy of Sciences of Ukraine indicate that support for Ukraine joining the union of Russia and Belarus decreased slightly, from 74 percent in 2002 and 76 percent in 2004 to 71 percent in 2006 (Panina, 2005, p. 36). However, such a union means different things to different people. To some it means a confederation as advocated by the CPU, while to others it means a much looser economic and political association.

The 2008 KIIS survey shows that a minority of Ukrainians (21 percent) expressed support for Ukraine and Russia uniting into one state. Support for such a union declined in 2008 compared to the second half of the 1990s, but it has not changed much since 2002. In 2008, backing for a Ukrainian-Russian partnership with open borders, without visas or customs, was similar to the level of support recorded at the beginning of this decade. However, support for this view, which remained the most widely backed option for relations with Russia, increased to 69 percent in 2008 compared to 49–54 percent in the 1990s (Table 2).

A comparison of the KIIS poll conducted in April 2008 with a similarly worded poll conducted by the Levada Center in Russia in March 2008 shows that, contrary to a prevalent view in the Western policy establishment and mass media, four years after the “Orange Revolution” Ukrainians were less interested than Russians in seeing Ukraine and Russia become like other independent countries, e.g., with closed borders, visas, and customs (10 and 20 percent, respectively). Ukrainians (21 percent) were about as likely as Russians (20 percent) to support unification of their countries into one state in 2008 (KIIS, 2008).

The majority of Ukrainians remain supportive of giving Russian status as a second state language or as an official language. The 2005 KIIS/Razumkov Center survey reveals that a majority (61 percent) of Ukrainians who had made up their mind on this issue favored making Russian the second state language in Ukraine. In comparison, the 1998 KIIS poll, which posed this question differently, shows that 56 percent of respondents supported giving Russian the status of an official language.

CONCLUSION

Viktor Yushchenko's victory and the mass protests during the 2004 presidential elections in Ukraine are often referred to as the democratic, pro-Western “Orange Revolution.” However, the analysis shows that changes in political institutions, leaders, parties, and values were not revolutionary. Many political leaders in the Orange camp had been key members of previous governments, and some of them belonged to the Soviet elite. The first Orange coalition that was formed in support of Viktor Yushchenko during the 2004 presidential elections represented an electoral

Table 2. Views of Preferred Relations between Ukraine and Russia in 1994–2008 (percent)^a

	1994	1995	1996	1997	1998	1999	2001	2002	2003	2004	2005	2006	2008
Like other independent countries (with closed borders, visas, and customs)	15	15	19	14	12	10	11	14	11	9	18	17	10
Friendly countries (with open borders and without visas and customs)	50	52	55	55	49	54	61	65	63	71	62	63	69
Unification into a single state	34	33	26	31	40	36	28	21	26	21	23	20	21
Total (percent)	100	100	100	100	100	100	100	100	100	100	100	100	100

^aSource: KIIS polls. “Don’t know” and “not sure” are excluded.

alliance of political parties with differing ideologies and interests. After the 2006 elections, it was replaced by a coalition that included the Party of Regions, the CPU, and the SPU. Similarly, the second Orange coalition, which came to power after the snap elections in 2007, is not likely to survive until the next parliamentary or presidential elections because of its internal divisions. While the influence of some oligarchs has diminished significantly since 2004, the political power of other oligarchs has increased considerably.

Developments after the "Orange Revolution" did not signify political stagnation or a complete retreat back to the old regime. Compared to Kuchma's semi-authoritarian regime, Ukraine has become more democratic, as is evidenced by the generally free and fair last round of the 2004 presidential elections and the 2006 parliamentary elections. However, Viktor Yushchenko's spring 2007 dissolution of parliament without sufficient legal reasons, his plans to use force to overcome the parliamentary majority's resistance to the disbanding of Rada and holding early elections, and the intentions of the anti-Orange coalition to nullify the results of the 2004 presidential elections by recruiting deputies from the Orange blocs and changing the constitution all show that political institutions in Ukraine have not become fully democratic. The significant support for the Party of Regions, which did not transform itself into a Western-type democratic party, coupled with the continuing strong influence of oligarchs and the undemocratic tendencies in the Orange camp, may even lead to a further retreat from democracy in Ukraine.

Since a peaceful transfer of power in free and fair elections is a key criterion of democracy, the next presidential elections, which are scheduled for January 2010, will provide an important test of whether democratic or authoritarian trends will prevail and whether the political system in Ukraine can be defined as democratic, semi-democratic, or non-democratic. The current trends indicate that Ukraine is likely to remain more democratic than such post-Soviet states as Belarus, Russia, Georgia, and Kyrgyzstan but less democratic than such post-communist countries as the Czech Republic and Poland.

The analysis of opinion poll data shows a gradual change in the political values of Ukrainians. Public support for Ukraine's membership in NATO and the EU has declined since 2004. A pro-Russian orientation has also become somewhat less popular. Poll results and the parliamentary elections held in 2006 and 2007 show that changes in support for presidential candidates and political parties reflected not a revolution but evolutionary change. Strong public support for Viktor Yushchenko during the 2004 elections was partly based on his charisma. Backing for Viktor Yushchenko and his bloc "Our Ukraine" declined significantly since the 2004 presidential elections and the 2002 parliamentary elections. The considerable rise in popular support for Yulia Tymoshenko and her bloc since 2004 has reflected, to a certain extent, her populist ideas and charisma. The Party of Regions has significantly increased its support compared to the 2002 elections while popular support for the Communist Party has declined.

The "Orange Revolution" actually was not a political revolution but a significant evolutionary development in Ukrainian politics. This study suggests that political developments since the 2004 presidential elections are unlikely to result in a revolutionary transformation in Ukraine. Gradual changes in such areas as political institutions, leaders, parties, and values are likely to continue in the near future. However, these future changes will not necessarily involve a movement towards a more democratic and less oligarchic political system and pro-Western orientation.

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